

HOUSE No. 3568

The Commonwealth of Massachusetts

PRESENTED BY:

Aaron L. Saunders

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to prohibiting public utility and ratepayer funding of clearcutting forests and woodlands.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Aaron L. Saunders</i>	<i>7th Hampden</i>	<i>1/16/2025</i>

HOUSE No. 3568

By Representative Saunders of Belchertown, a petition (accompanied by bill, House, No. 3568) of Aaron L. Saunders relative to prohibiting public utility and ratepayer funding of clearcutting forests and woodlands. Telecommunications, Utilities and Energy.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to prohibiting public utility and ratepayer funding of clearcutting forests and woodlands.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Notwithstanding any general or special law to the contrary, the department
2 of energy resources and department of public utilities shall amend any rules, regulations, and
3 tariffs pursuant to section 11 of chapter 75 of the acts of 2016 or successor statute to prohibit
4 from qualification any solar facility, including any solar energy generating source, that (1) has
5 not received a statement of qualification, or similar official notice of approval, from the
6 department prior to January 1, 2025 and (2) is greater than or equal to nameplate capacity of
7 500kW if such facility meets any of the following criteria:

8 (i) is located within a parcel that includes priority habitat as delineated by the division of
9 fisheries and wildlife under chapter 131A

10 (ii) is located within an area of critical environmental concern as designated by the
11 secretary of energy and environmental affairs

(iii) is located within forest land as defined in section 2 of chapter 61 of the general laws

SECTION 2. A prohibition established in Section 1 shall not apply to facilities located within a brownfield or within eligible landfills as determined by the commissioner of the department of energy resources; nor shall such prohibition apply to building mounted facilities or facilities sited upon previously developed land.